



POLICE DEPARTMENT

March 5, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202206016 (Incident Date: September 8, 2022) regarding Captain Christopher Diakonikolas, Tax No. 932595 (DADS No. 2024-29951) and Lieutenant James Gebbia, Tax No. 934915 (DADS No. 2024-29950)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202206016, pertaining to Captain Christopher Diakonikolas and Lieutenant James Gebbia. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officers would be detrimental to the Police Department's disciplinary process.

In this matter, Lieutenant Gebbia and Captain Diakonikolas, while working at the Emergency Services Unit, received a call for a barricaded person inside a three-family home. The officers entered the first floor and apprehended the perpetrators. The officers then continued to the second floor and entered and searched the premises. As a result, CCRB substantiated allegations that the officers improperly entered and searched an apartment. While the Police Commissioner agrees with the CCRB's substantiation of the allegations in this matter, the Police Commissioner does not agree that Charges and Specifications are the appropriate form of penalty.

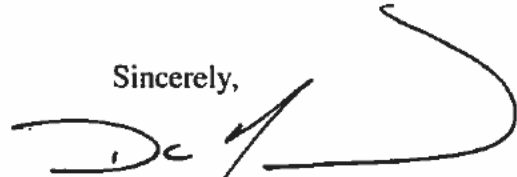
Given Lieutenant Gebbia and Captain Diakonikolas lack of prior formal disciplinary history and lack of substantiated CCRB complaints, and in the interest of progressive discipline, the allegations against both officers are best addressed with the imposition of a command discipline.

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Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "B" Command Discipline to both Captain Diakonikolas and Lieutenant Gebbia for the alleged misconduct.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

March 8, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Captain Christopher Diakonikolas, Tax No. 932595 (DADS No. 2024-29951) and
Lieutenant James Gebbia, Tax No. 934915 (DADS No. 2024-29950)

Case No: 202206016

Incident Date: September 8, 2022

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated March 5, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to issue a Schedule B Command Discipline to CPT Diakonikolas and LT Gebbia. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

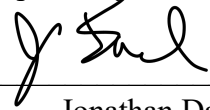
The CCRB respectfully disagrees that pursuing Charges and Specifications against CPT Diakonikolas and LT Gebbia would be detrimental to the Police Department's disciplinary process. The investigation determined that both CPT Diakonikolas and LT Gebbia were aware of the two positive identifications before they proceeded to search the other floors of the apartment complex.

Captain Diakonikolas was appointed in 2003 and LT Gebbia was appointed in 2004. Taking into consideration their work history and experience, it is the CCRB’s position that the CPT and LT both had the requisite knowledge of when a search of a property is proper. The CCRB’s investigation determined that both Respondents committed misconduct when they entered and searched the complainant’s apartment, and in the process caused damage to the complainant’s door. Deputy Chief Marino’s letter states that you agreed with these findings.

Since you have agreed with the CCRB's substantiation of the charges against both Respondents, the CCRB believes that you should issue the requested Charges and Specifications and allow the disciplinary process to proceed.

Based upon the foregoing, the CCRB would request that the Charges and Specifications be served upon CPT Diakonikolas and LT Gebbia.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J. Darche", written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

March 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

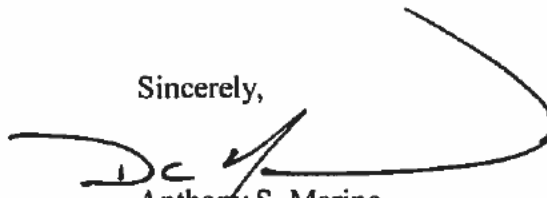
Re: CCRB Case No. 202206016 (Incident Date: September 8, 2022) regarding Captain Christopher Diakonikolas, Tax No. 932595 (DADS No. 2024-29951) and Lieutenant James Gebbia, Tax No. 934915 (DADS No. 2024-29950)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated March 8, 2024, regarding the CCRB case involving Captain Diakonikolas and Lieutenant Gebbia and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of said officers, for the reasons expressed in my March 5, 2024 letter.

To accommodate the Statute of Limitations and in accordance with the Police Commissioner's direction, Captain Diakonikolas and Lieutenant Gebbia were both issued a Schedule "B" Command Discipline for the alleged misconduct. Captain Diakonikolas and Lieutenant Gebbia subsequently declined the findings and proposed penalty and elected to resolve the matter through formal charges and specifications.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office